

4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

15. 9:00 AM CASE NUMBER: MSL21-00545

CASE NAME: CITIBANK, N.A. VS. MABEL ORTIZ

*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATED SETTLEMENT

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Plaintiff Citibank, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment on September 24, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on August 16, 2021 (the "Settlement Agreement"), the terms of which included payment by the defendant Mabel Ortiz ("Defendant") in the amount of \$9,842.48 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Request for Judicial Notice filed September 24, 2025, **Exhibit B**, Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$548.00 due and owing, plus costs of \$577.00. Memorandum of Costs filed September 24, 2025; see also Supporting Declaration, ¶¶7-8.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$548.00, plus costs of \$577.00, for a total judgment of \$1,125.00.

4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.